

Court No. - 2

Case :- WRIT - C No. - 46844 of 2007

Petitioner :- Murari Lal

Respondent :- Regional Appellate Committee/Supdt. Engg./D.G.M. & Others

Counsel for Petitioner :- Mayank Agrawal, M.K. Agrawal, Seema Agrawal, Vinod Sinha

Counsel for Respondent :- SC, A.N. Singh, H.P. Dube

Hon'ble Anjani Kumar Mishra, J.

Passed over on the illness slip of Shri Vinod Sinha, learned counsel for the petitioner.

Order Date :- 25.11.2016

Mayank

Court No. - 25

Case :- WRIT - C No. - 46844 of 2007

Petitioner :- Murari Lal

Respondent :- Regional Appellate Committee/Supdt.
Engg./D.G.M. & Others

Counsel for Petitioner :- Mayank Agrawal,M.K.
Agrawal,Seema Agrawal,Vinod Sinha

Counsel for Respondent :- SC,A.N. Singh,H.P. Dube

Hon'ble Siddhartha Varma,J.

On the request of learned counsel for the petitioner, the case is
passed over for the day.

Order Date :- 8.11.2017

Ashish Pd.

Court No. - 18

Case :- WRIT - C No. - 46844 of 2007

Petitioner :- Murari Lal

Respondent :- Regional Appellate Committee/Supdt. Engg./D.G.M. & Others

Counsel for Petitioner :- Mayank Agrawal, M.K. Agrawal, Seema Agrawal, Vinod Sinha

Counsel for Respondent :- SC, A.N. Singh, H.P. Dube

Hon'ble Dr. Kaushal Jayendra Thaker, J.

It is stated at the Bar by the counsel for the petitioner a supplementary affidavit was filed by him on 11.12.2017 exactly before one year. The same is not on record.

Office to locate the same on or before 19.11.2018.

List on 19.11.2018.

Order Date :- 13.11.2018

DKS

Court No. - 18

Case :- WRIT - C No. - 46844 of 2007

Petitioner :- Murari Lal

Respondent :- Regional Appellate Committee/Supdt. Engg./D.G.M. & Others

Counsel for Petitioner :- Mayank Agrawal, M.K. Agrawal, Seema Agrawal, Vinod Sinha

Counsel for Respondent :- SC, A.N. Singh, H.P. Dube, Nripendra Mishra

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Heard learned counsel for the parties.

There is a suggestion by Sri Nripendra Mishra appearing for the respondent - Corporation that by of subsequent event, it is not in dispute now that criminal proceedings against the petitioner have attained finality and has resulted in acquittal of Sri Murari Lal, the present petitioner herein and as per the provisions of U.P. Electricity Supply Code, 2005, now Murari Lal may approach the authority concerned and claim for adjustment of amount/penalty by proving that calculation was on the higher side. This exercise may be completed as expeditiously as possible.

Sri Mahesh Sharma holding brief of Sri Vinod Sinha is agreeable to this suggestion.

In that view of the matter, without going into merits of the matter, this petition stands partly allowed. The petitioner's claim will now be examined by respondent no.3, who will decide the same on or before 31.3.2019. The petitioner may also place subsequent development on record of the authority.

It goes without saying that recovery will not be pressed till the authority decides the matter.

Prayer no.3 is not pressed by the petitioner.

Order Date :- 19.11.2018

Irshad